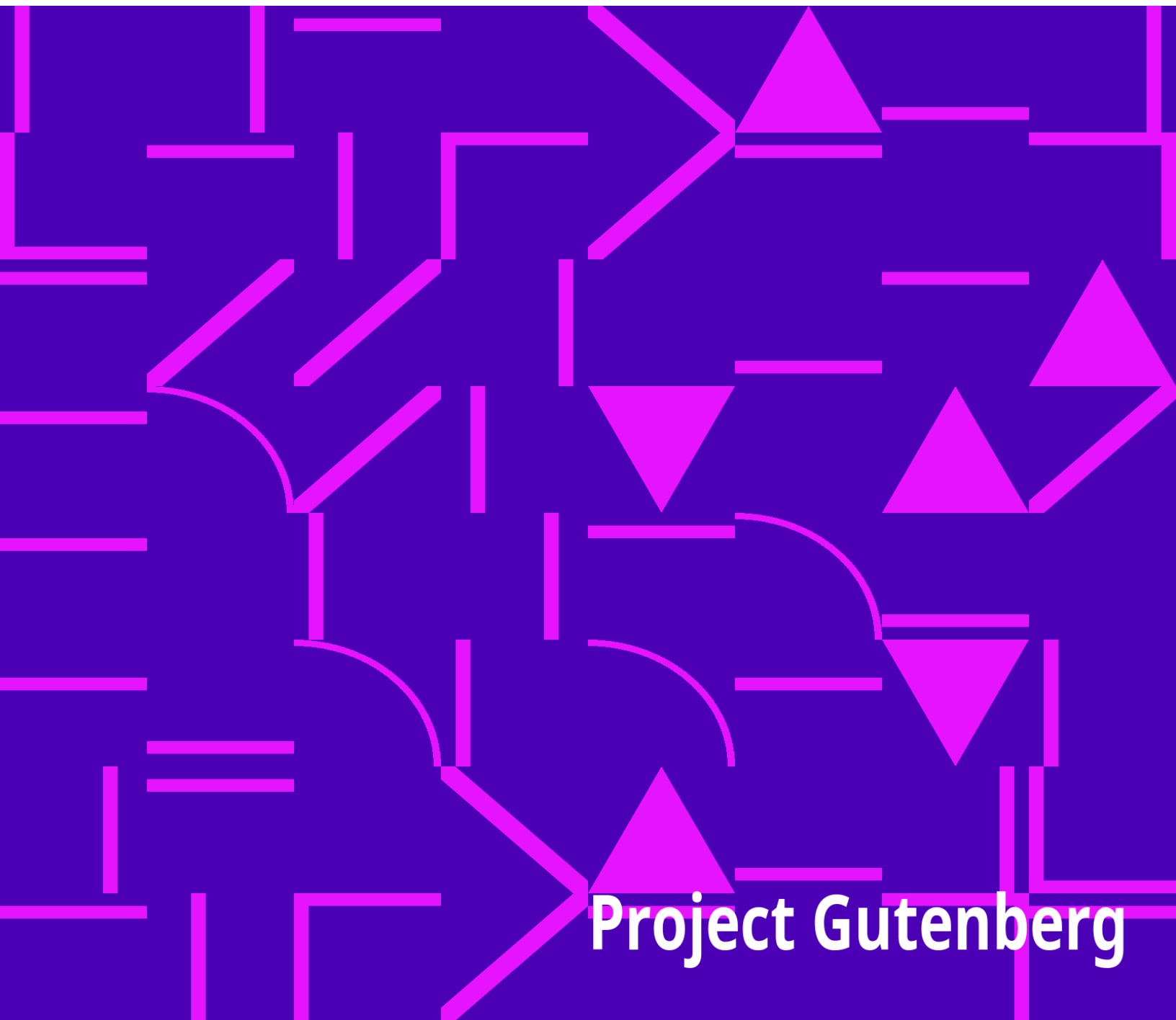


The Marylebone Penny Readings and Their Critics

Henry Taylor

The background of the lower half of the image is a solid dark blue. Overlaid on this is a complex, repeating pattern of light blue geometric shapes. These shapes include various sizes of triangles, squares, and rectangles, some of which are nested or overlapping. The pattern is dense and covers the entire lower section of the image.

Project Gutenberg

The Marylebone Penny Readings and Their Critics

Henry Taylor



Project Gutenberg

The Project Gutenberg eBook of The Marylebone Penny Readings and Their Critics

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Marylebone Penny Readings and Their Critics

Author: Henry Taylor

Release date: January 4, 2017 [eBook #53888]

Language: English

Other information and formats: www.gutenberg.org/ebooks/53888

Credits: Transcribed from the 1869 Marylebone Penny Readings edition by
David Price

*** START OF THE PROJECT GUTENBERG EBOOK THE
MARYLEBONE PENNY READINGS AND THEIR CRITICS ***

Transcribed from the 1869 Marylebone Penny Readings edition by David
Price, email ccx074@pglaf.org

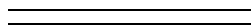
**THE
MARYLEBONE
PENNY READINGS
AND THEIR
CRITICS:**

AN ADDRESS TO THE PATRONS AND FRIENDS
OF THE

MARYLEBONE PENNY READINGS,

BY

HENRY TAYLOR,
HONORARY CONDUCTOR.



LONDON:

PUBLISHED BY THE MARYLEBONE PENNY READINGS,
The Harrow Road Hall, Cromwell Terrace, W.

1869.

[PRICE ONE PENNY.]

TO THE PATRONS AND FRIENDS OF THE MARYLEBONE PENNY READINGS.

MY LORDS AND GENTLEMEN,

As Certain statements have appeared in the Local Journals reflecting upon my character as the Honorary Conductor of "The Readings," and upon the Institution, I deem it my duty to send this statement to you, with the request that you will give it your kind and impartial consideration. I should not have adopted this course had the Editors of those journals, viz.: "The Marylebone Mercury" and "The Bayswater Chronicle," inserted my letters addressed to them, giving a denial of the misrepresentations. I think it may not be out of place to give you a sketch of the progress of the Institution, and to mention from what cause I was induced to commence the series of Penny Readings first known as "Praed Street Penny Readings," but afterwards more appropriately termed "The Marylebone Penny Readings." I had attended many Penny Reading meetings within the metropolis and was thoroughly convinced that such meetings were not only calculated to do much good, but would be very acceptable to the working classes if properly conducted; but, unfortunately, in many instances the programmes abounded with Vulgar Comic Songs, while in others a religious spirit was infused, rendering the programme monotonous and unattractive. Having a little time at my disposal, I determined upon founding a series of Penny Readings, having for its objects—"presenting a counter attraction to haunts of vice and of creating and improving the tastes for pure and standard literature." With this view, I gave an inaugural meeting at the Foresters' Hall, on Thursday evening, November 21st, 1867, when our esteemed member, Mr. Thomas Chambers, M.P., Q.C., presided; through the kindness of the Rev. John Clifford, LL.B., I was permitted to hold a series of twenty-seven meetings in the small room beneath "Praed Street Chapel;" the first

meeting was held there on the 24th November, under the Presidency of Mr. F. Berridge, F.R.G.S. The first four meetings were thinly attended, but the attendance gradually increased until they acquired a popularity as the first of their class.

Encouraged by success, another branch was opened at “The Lecture Hall, New Church Street.” This branch, unfortunately, proved a financial failure. At the end of the series I found we were in debt to the extent of £25: of this I paid £15, and with the consent of the creditors, about £10 was allowed to remain until another season; under these circumstances I did not feel justified in increasing our liabilities by publishing a report. Being now practically convinced that although these meetings could not be a financial success, they would accomplish their object and be very acceptable to the working classes—knowing that there were many noblemen and gentlemen who would willingly assist such a good and really charitable cause, I appealed to many I knew to be interested in the welfare and progress of the working man, and had the pleasure of receiving many affirmative and encouraging replies. In November last I wrote to the Rev. J. Moorhouse, (Vicar of St. James’s, Paddington), for permission to hold meetings within the St. James’s National Schools,—this was granted for a period of thirteen meetings; the series were duly inaugurated at the Schools, and well attended. After the seventh Reading, I received an intimation from the Secretary of the School Committee to the effect that they had resolved to withdraw their permission on the ground that such Readings were not in conformation with the objects for which the Schools were built, viz.: National Education. I must confess I was greatly surprised at this declaration, inasmuch as many gentlemen of eminence who had presided at the meetings, including the Rt. Hon. A. H. Layard, M.P., and Thomas Chambers, Esq., M.P., had publicly stated that they believed such meetings to be a certain and valuable channel for the conveyance of learning. Such being the decision of the School Committee, however unjustified they may have been in withdrawing the permission before the expiration of the stated time, I had no alternative but to submit to that decision. I then engaged the large and commodious Hall known as “Providence Hall,” and this was presided over by our esteemed patron the Hon. Lord Fitzmaurice, M.P., for Calne. We were again successful until a clique was formed against us by members of a similar institution and others to disturb our meetings. After

vainly attempting to hold meetings, I called a private meeting, at which Mr. Edmond Beales presided, and we decided upon holding no further meetings for the present; at the same time a committee was formed at my request to audit and investigate accounts, and to publish the report.

Having given you a brief, and I trust a satisfactory account of our proceedings, I feel it incumbent upon me to comment upon the statements referred to in the former part of this address. The first subject of comment will be the circular *purporting* to be issued by Lord Lichfield; the second, the case of Oetzmann *versus* The Marylebone Penny Readings; and thirdly, the scandalous and unfounded reports of the Local Journals.

The circular referred to was that issued by Mr. C. J. Ribton Turner (?), and purporting to be signed by Lichfield, Hodgson Pratt, J. W. Probyn, H. N. Hoare, Auberon Herbert, and Julian Goldsmid, who state that they have withdrawn their names from the Patron List of “The Marylebone Penny Readings” owing to reports which have appeared in “The Marylebone Mercury” of proceedings taken against the Hon. Conductor in the Bloomsbury County Court; and that “we beg further to state that though Mr. Taylor was requested by Lord Lichfield on the 3rd inst., (March), to furnish a statement of his receipts and expenditure, he has not, up to the present time, thought fit to comply with the invitation.” Whether in issuing this circular Mr. C. J. Ribton Turner has been authorised to use the names appended to it, I cannot say; but this I can truly affirm,—that the said circular is a tissue of misrepresentations. In the first place, I was *never* requested by Lord Lichfield to furnish any account whatever. The facts of the case are these:—On Tuesday, March 1st., the Right Hon. the Earl of Lichfield (with authority) was announced to preside at our usual weekly meeting; his Lordship came to the meeting, (I am informed accompanied by Thomas Oetzmann and others, this being previously arranged); his Lordship informed the audience that he had never given his consent to preside at the meeting, and expressed his dissatisfaction at the course Mr. Taylor had taken regarding the payment of the account of Thomas Oetzmann, trading as Thomas Oetzmann & Company (?). With all due respect to his Lordship, I am assured that he gave his consent to preside; and it may be desirable to mention, that on the Thursday previous to the meeting, I sent a note reminding him of his promise; and on the following Monday I sent a programme of the meeting. If his Lordship had not promised to preside,

why did he not send an intimation? On the 2nd March I addressed a letter to his Lordship apologizing for the mistake, *if* on our part, and asking whether I should retain his Lordship on the Patron List, and adding that I should be pleased to furnish him with a statement of receipts and expenditure. I trusted that his Lordship would not be guided by *ex parte* statements. On the 4th his Lordship replied, stating that he must decline to remain on the Patron List, but would be willing to give any statement that might be forwarded his impartial consideration. I was prevented by ill health from sending the account before the 20th. On the 23rd his Lordship returned the account for audit and publication, and it is now in the hands of the Audit Committee. As I had the authority to place the names of Hodgson Pratt, Julian Goldsmid, H. N. Hoare, and J. W. Probyn, Esquires, upon the List of Patrons, in the absence of any notification that either of those gentlemen wished to have their names removed, I may with justice consider them as belonging to the Institution. A note is appended to the effect that the Rev. James Moorhouse and Dr. Forbes Winslow never authorized the publication of their names as Patrons; this I beg to state is false, and that those gentlemen have taken very prominent parts in our meetings; from these facts I consider that we may very justly ignore the circular and its fallacious contents.

The next subject for comment is the case of Oetzmann *versus* The Marylebone Penny Readings, in which I was, as Hon. Conductor, sued for the balance of accounts. I think it necessary to state that the original amount of account was £3 17s. 1d.; of this £2 1s. was paid, leaving a balance of £1 16s. For this balance I was sued! A representative of the firm (collector I presume) called upon me at the latter-end of December for the amount. I told him we were not in a position to pay, but would guarantee its payment within three months; the collector expressed his approbation, and withdrew. On me 22nd January I received a copy of "The Marylebone Mercury;" upon perusal I found, to my great surprise, a report of the case in which I was sued for the balance of account at the suit of "Thomas Oetzmann, trading as Thomas Oetzmann and Company." I did not receive any summons, nor was I aware that proceedings were taken until I saw the paper alluded to. In support of the case, letters were put in, in one of which it was stated I pleaded minority,—this I most emphatically deny! and in support of this assertion, beg to state that I called upon the said Thomas

Oetzmann on the 16th of March to produce the said letter, which of course was not done. Comment is needless. The account is paid; but nevertheless, Thomas Oetzmann continues a system of unjustifiable persecution, at once unmanly and cowardly; he has been to our tradesmen and made gross misrepresentations; he has been to our Halls and disturbed our meetings, and guilty of such conduct as any honest man would be ashamed of.

Now I would refer to the unwarrantable attacks made upon me, and “the readings” in the columns of “The Marylebone Mercury” and “The Bayswater Chronicle.” I am an ardent advocate for the liberty of the press; but I think all will agree with me that as the press have undoubted power, they should be careful how that power is used in giving currency to personal attacks and *ex parte* statements; when this is done, they should at least give the attacked party an opportunity of replying to the accusations;—this has not been done in my case. My letters addressed to the Editors of both journals, containing denials to unfounded statements and inaccurate reports, have been suppressed in many cases; while in others disjointed and useless extracts have been made from them. I would appeal to you, is this justice? You will, I am sure, say “No!” “The Marylebone Mercury” has been extremely bitter and unjust in its criticism. I think it a disgrace that any journal having the Flag of Freedom hanging over its head, should insert petty, and of course anonymous attacks at the instance of any one who advertises largely in their columns; but in the Mercury, (or more appropriately speaking, “Múckery”), Editorial Office Justice is most decidedly blind. As to “The Bayswater Chronicle,” Bacchus and prejudice seem to be the presiding Gods—it has been of late a repertoire of unwarrantable attacks and false reports, such as it is plainly perceptible emanate from a malicious pen. It may not be out of the place to state that the Editor of “The Bayswater Chronicle”—a Mr. Myers (?)—came to our meeting one evening in a state of intoxication, having, as his friend informed us, been tasting wine at the Docks. After vainly endeavouring to disturb the meeting, the gentleman (?) conducted himself in a most abominable and disgusting manner—so much so, that appeals were made to me from all parts of the Hall to expel him; but being unwilling to do so, I allowed him to remain; however, the audience violently expelled him by sundry kicks and a good bonnetting; this may be sufficient to account for

the bitter spirit in which “Mr. Editor” discharges that which he has the audacity to term a public duty.

Comparisons have been drawn between the meetings of our Institution, and those of a similar character, which it is asserted not only pay their own expenses, but yield a surplus for charity; but it must be borne in mind that our meetings are very superior to any of the same class, and that we have to pay for the hire of halls, for hire of pianos, and occasionally for artistes, while the majority of other Readings have their rooms and pianos lent to them; these items, though not very great, materially increase the expenditure; but for all this, I feel justified in stating that had it not have been for the malicious intervention of “the clique,” “the Readings” would have been almost self-supporting.

I trust I may not be thought egotistical in the few remarks I am compelled to make concerning myself, as you are aware there is much labour attached to the post which I hold. I have laboured unceasingly, and I trust successfully, to establish a Penny Reading Institution after the design of its originators,—Mr. Sergeant Cox and Professor Plumptre;—but this labour has had the effect of greatly injuring my health,—of preventing the application of my energies to a lucrative undertaking. I do not complain, for my task has been a labour of love to me, but am naturally grieved to find that, after having devoted so much valuable time and hard-earned cash, I should meet with such unwarrantable and unjustifiable attacks and absurd opposition. I cannot but accept this as a good omen, for every good movement meets with great opposition. This I think proves the truth of that great Shakesperian quotation:—

“Let Hercules do what ere he may,
Cats will mew, and every dog will have his day!”

Even that horrid dog opposition. I have much pleasure in stating that the affairs of the Institution will in future be managed by a President, Chairman, Treasurer, Auditors, Secretaries, and a council elected of Noblemen and Gentlemen, selected from the List of Patrons and Artistes. A subscription list is opened for the purpose of liquidating the debts of the Institution. Those who desire to testify their appreciation of our labours, will kindly send their subscriptions to our esteemed friend Edmond Beales,

Esq., 4, *Stone Buildings, Lincoln's Inn, W.C.*, who has kindly consented to receive subscriptions, and to see that they are applied to the liquidation of our debts. I cannot conclude without returning my sincere thanks to Earl Spencer; the Hon. Lord Arthur Clinton; Thomas Chambers, Esq., M.P.; Edmond Beales, Esq.; the Hon. Auberon Herbert; the Rev. J. Clifford; the Rev. Jas. Moorhouse; Mr. Sergeant Cox; Professor Plumptre; Frederick Berridge, Esq.; H. W. Oatway, Esq.; Dr. J. E. Carpenter; Dr. Atlschul; Dr. Yewen; Mesdames Rudersdorff Leupold, Harrie Oatway, H. B. Stemson, and H. Elmer; Mr. D. Ellis Howe; Mr. Charles Arnold; Mr. John Rowe; to my assistants—Messrs. D. B. Croft, C. H. Liddon, and Walter Mallett; to the Editors of “*The Times*,”

“*Star*,” “*Standard*,” “*Lloyd's*,” and the Press generally, for the valuable support accorded to us in the promotion and continuance of “*The Marylebone Penny Readings*.”

With these remarks, I am content to leave the judgment in your hands, feeling assured that this statement will meet with your impartial consideration. With many thanks for the kindness and courtesy I have ever received at your hands,

I have the honor to be,

MY LORDS AND GENTLEMEN,

Your faithful Servant,
HENRY TAYLOR
Hon. Conductor.

“*THE HARROW ROAD HALL*,”
Cromwell Terrace, Harrow Road, W.
JULY, 1869.

*** END OF THE PROJECT GUTENBERG EBOOK THE
MARYLEBONE PENNY READINGS AND THEIR CRITICS ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.